

Illustration by SIDDHANT JUMDE

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decriminalise marital rape. It is unfortunate that India has not able to move out of this list of countries.

WHY ARGUMENTS FOR MRE DO NOT HOLD

There are a few arguments put forward by supporters of the MRE that need to be dispelled immediately. First, that by striking down Exception 2 to Section 375 of the IPC, the court is usurping the role of the legislature and making a law. Such an argument is predicated on a misunderstanding of the role of the court and the power of judicial review. The striking down of an existing exemption in the law is not the same as a court proactively legislating an offence into existence. Exception 2 to Section 375 of the IPC is present on the statute book and hence it is well within the court's remit to examine the constitutionality of the provision.

Second, that the criminalisation of marital rape will result in severe misuse. It is a settled position in Indian law that mere apprehension of misuse cannot be a ground to strike down a law or render it unconstitutional (*Budhan Choudhry vs. State of Bihar*, 1955). Arguments of misuse were also made when Parliament introduced the domestic violence legislation in 2005 or when it criminalised the commission of cruelty against women. Concerns of misuse need to be addressed by improving existing laws, procedural due process, and curbing unrestrained (mis)use of police powers—as is needed to curb the misuse of, say, sedition or anti-terror laws. However, the answer does not lie in removing the protection otherwise afforded to women or preventing the state from intervening in a marital home, especially given the gender-unequal nature of society.

Third, that the MRE is integral to maintaining the sanctity of marriage—that introducing the possibility of the husband being regarded as the wife's rapist is "completely antithetical to the very institution of marriage" (per Justice Shankar). At the end of the day, we must question whether we want to protect such a version of marriage that cements the inequality between a husband and wife, ignores consent and autonomy, and treats women as chattel. That is at least not the kind of world I want my daughter to grow up in. ■

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